

§ 305.1. Custody by a private person. 1. A private person may take a child who may be subject to the provisions of this article for committing an act that would be a crime if committed by an adult into custody in cases in which such private person may arrest an adult for a crime under section 140.30 of the criminal procedure law.

2. Before taking such child under the age of sixteen into custody, a private person must inform the child of the cause thereof and require him to submit, except when he is taken into custody on pursuit immediately after the commission of a crime.

3. After taking such child into custody, a private person must take the child, without unnecessary delay, to the child's home, to a family court, or to a police officer or peace officer.